

CONTRACT OF EMPLOYMENT

Statement of written particulars pursuant to section 1, Employment Rights Act 1996

Reference: GCD-EMP-2024-0188 **Issued:** 28 June 2024 **Effective from:** 08 July 2024 **HR Owner:** V. Okeke

Employer	Greycliff Digital Ltd (the “ Company ”), a company incorporated in England and Wales with registered number 11440293, whose registered office is at Greycliff House, 22 New Cavendish Street, London W1G 8UN.
Employee	Mr Ryan Daniel Patel (“ you ”), of 7 Brindley Court, Highgate, London N6 5RS.
Position	Senior Account Executive, Performance Marketing, reporting to the Head of Performance Marketing (or such other person as the Company may from time to time notify).
Effective date / Continuous service	Your employment commences, and your period of continuous service begins, on 08 July 2024. No employment with a previous employer counts as part of your period of continuous employment.
Probationary period	Six (6) months from the Effective Date, extendable once by up to three (3) months at the Company’s discretion (clause 4).
Place of work	Greycliff House, 22 New Cavendish Street, London W1G 8UN, with up to two (2) days’ remote working per week subject to the Company’s Hybrid Working Policy (clause 6).
Schedules	Schedule 1 (Job Description); Schedule 2 (Commission Scheme Rules 2024/25); Schedule 3 (Authorised Deductions and Set-Off).

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*This statement of written particulars (the “**Agreement**”) is made between the Company and you and records the principal terms of your employment with the Company. It is given to you under section 1 of the Employment Rights Act 1996 and forms the contract of employment between us.*

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, unless the context otherwise requires:

- a. “**Affiliate**” means, in relation to the Company, any holding company or subsidiary undertaking of the Company from time to time;
- b. “**Client**” means any person, firm or company who is, or was at any time during the twelve (12) months preceding the Termination Date, a client or customer of the Company or any Affiliate;
- c. “**Confidential Information**” has the meaning given in clause 14.1;
- d. “**Group**” means the Company and its Affiliates from time to time;
- e. “**Restricted Period**” means the period of six (6) months immediately following the Termination Date, less any period spent on Garden Leave;
- f. “**Termination Date**” means the date on which your employment with the Company terminates, howsoever caused.

1.2 Interpretation

Headings are for convenience only and do not affect interpretation. References to statutes include any modification or re-enactment. The singular includes the plural and vice versa.

2. TERM AND COMMENCEMENT

2.1 Your employment with the Company commenced on the Effective Date and, subject to the remaining provisions of this Agreement, shall continue until terminated by either party in accordance with clause 21.

2.2 No employment with any previous employer counts as part of your period of continuous service with the Company.

2.3 You warrant that, by entering into this Agreement and performing your duties, you will not be in breach of any obligation owed to any third party (including any former employer) and that there is no reason why you cannot lawfully be employed by the Company in the United Kingdom.

3. JOB TITLE AND DUTIES

3.1 You are employed as Senior Account Executive, Performance Marketing. A high-level description of your role is set out in Schedule 1. The Company reserves the right at any time to require you to perform such other duties as may reasonably be assigned to you, commensurate with your position and experience.

3.2 You shall:

- a. devote the whole of your working time, attention and abilities to the business of the Company during normal working hours and at such other times as the proper performance of your duties may reasonably require;
- b. faithfully and diligently perform your duties and exercise such powers consistent with them as may from time to time be assigned to you;
- c. comply with all lawful and reasonable directions given by the Company and with all policies, rules and procedures of the Company in force from time to time (including the Employee Handbook, Information Security Policy, Anti-Bribery Policy and Equality, Diversity and Inclusion Policy);
- d. use your best endeavours to promote, protect and develop the interests of the Company and its Group.

4. PROBATIONARY PERIOD

4.1 The first six (6) months of your employment is a probationary period during which your performance and suitability for continued employment will be monitored.

4.2 The Company may, at its discretion, extend your probationary period by a single further period of up to three (3) months on written notice to you.

4.3 During your probationary period (and any extension), either party may terminate this Agreement on one (1) week's written notice. The provisions of clauses 14, 15, 16 and 18 apply during and after any such termination.

5. HOURS OF WORK

5.1 Your normal hours of work are 9.00am to 5.30pm, Monday to Friday inclusive, with one (1) hour unpaid for lunch, totalling 37.5 hours per week.

5.2 You may be required from time to time to work such additional hours, including outside normal working hours and on weekends or public holidays, as may reasonably be necessary for the proper performance of your duties. You will not receive additional remuneration for such hours, your basic salary having been set with this in mind.

5.3 You agree that regulation 4(1) of the Working Time Regulations 1998 (the 48-hour average weekly limit) shall not apply to you. You may withdraw this agreement by giving the Company three (3) months' written notice.

6. PLACE OF WORK AND MOBILITY

6.1 Your usual place of work is Greycliff House, 22 New Cavendish Street, London W1G 8UN.

6.2 You may work remotely on up to two (2) days per calendar week, subject to operational requirements and to the Company's Hybrid Working Policy as amended from time to time. Remote working is a privilege and may be withdrawn or restricted at the Company's reasonable discretion.

6.3 The Company may require you to work, on a temporary or permanent basis, at any other place of business of the Company or any Affiliate within Greater London. You may also be required to travel within the United Kingdom and overseas in the performance of your duties.

7. REMUNERATION

7.1 Your basic salary is £33,600 gross per annum (the "**Basic Salary**"), equivalent to £2,800 gross per calendar month.

7.2 Your Basic Salary is paid monthly in arrears, on or around the twenty-eighth (28th) day of each calendar month, by BACS transfer to a UK bank or building society account nominated by you in writing. Where the 28th falls on a non-working day, payment may be made on or around that date.

7.3 Income tax, employee National Insurance contributions, pension contributions and any other lawful deductions will be deducted at source.

7.4 Your salary will be reviewed annually, normally in April. Any review is discretionary and shall not give rise to any entitlement to an increase. Your salary will not be reviewed after notice of termination has been given by either party.

8. COMMISSION AND VARIABLE PAY

8.1 In addition to your Basic Salary you will be eligible to participate in the Company's commission scheme for client-facing performance marketing employees, the current rules of which are set out in Schedule 2 (the "**Commission Scheme**").

8.2 Commission is calculated quarterly in arrears by reference to the Company's financial quarters and, where payable, is paid in the calendar month following the end of the relevant quarter, into the same account as your Basic Salary.

8.3 Commission is payable at the Company's discretion on active employees at the date of payment. Without prejudice to the foregoing, the Company shall exercise that discretion rationally and in good faith, taking into account in particular: (a) the amounts that have in fact been earned under the Commission Scheme; (b) any sums confirmed in writing as payable by an authorised member of management; and (c) the principles of fairness applicable to discretionary remuneration.

8.4 The Company reserves the right to amend, suspend or withdraw the Commission Scheme at any time on reasonable written notice. No such amendment shall affect commission already earned and confirmed as payable in writing prior to the date of the amendment.

8.5 If you are subject to a Performance Improvement Plan, formal disciplinary proceedings, or have given or received notice of termination at the date a commission payment would otherwise be made, the Company may at its discretion withhold or pro-rate the payment, save where the commission has already been confirmed in writing as payable.

9. PENSION

9.1 You will be automatically enrolled in the Company's qualifying workplace pension scheme (the "**Pension Scheme**"), currently administered by Smart Pension Master Trust, in accordance with the Pensions Act 2008.

9.2 The Company shall contribute an amount equal to four (4) per cent of your qualifying earnings, conditional on you contributing not less than five (5) per cent of your qualifying earnings.

9.3 You may opt out of the Pension Scheme in accordance with its rules.

10. EXPENSES

10.1 The Company will reimburse all reasonable expenses properly and necessarily incurred by you in the performance of your duties, on production of receipts or other appropriate evidence and in accordance with the Company's Expenses Policy from time to time in force.

10.2 Any corporate credit card issued to you is the property of the Company and must be returned on request.

11. HOLIDAY ENTITLEMENT

11.1 You are entitled to twenty-five (25) working days' paid holiday per holiday year, in addition to bank and public holidays normally observed in England.

11.2 The Company's holiday year runs from 1 April to 31 March. In the year in which your employment begins or ends, your entitlement accrues pro rata to the proportion of the holiday year for which you are employed.

11.3 You may carry over up to five (5) days of unused holiday into the following holiday year, with the prior written agreement of your line manager. Any further unused holiday will be lost.

11.4 On termination of employment, accrued but untaken holiday will be paid in lieu, calculated as follows: (Annual holiday entitlement × days employed in the current holiday year / 365) less holiday already taken, multiplied by your daily rate. Your daily rate for these purposes is your annual Basic Salary divided by 260.

11.5 Where, on termination, you have taken more holiday than you have accrued, the Company is entitled to deduct the excess from any sums due to you (see clause 20).

12. SICKNESS ABSENCE AND PAY

12.1 If you are unable to attend work due to sickness or injury, you must notify your line manager (or, in their absence, the HR Operations Manager) by 9.30am on the first day of absence and on each subsequent working day unless otherwise agreed.

12.2 You must complete a self-certification form for absences of up to seven (7) consecutive calendar days and provide a fit note (Statement of Fitness for Work) for absences of more than seven (7) consecutive calendar days.

12.3 Subject to compliance with clauses 12.1 and 12.2, the Company will pay Company Sick Pay (CSP) equivalent to your full Basic Salary, less any Statutory Sick Pay (SSP) and state benefits to which you are entitled, for up to twenty (20) working days' absence in any rolling twelve (12) month period. Thereafter only SSP will apply (subject to eligibility).

12.4 The Company may require you to attend a medical examination by a doctor of its choosing, at its expense.

13. OTHER BENEFITS

13.1 You will, subject to the rules of the relevant schemes from time to time in force, be eligible for: (a) Vitality private medical insurance (single cover) after successful completion of probation; (b) the Company's Cycle to Work scheme; (c) twenty-five (25) days of paid "wellbeing leave" over a five-year period, in accordance with the Company's policy; and (d) access to the Spill employee assistance programme.

13.2 The Company may at any time alter, withdraw or replace any benefit, save for benefits which are statutory entitlements.

14. CONFIDENTIAL INFORMATION

14.1 "Confidential Information" means all information of a confidential or commercially sensitive nature relating to the Company, any Affiliate or any Client, including (without limitation): client lists and contact data; pricing structures and margins; campaign performance data; pitch materials; supplier terms; salary and bonus information; technical know-how; strategic and financial plans; and information given to the Company under a duty of confidence.

14.2 You shall not, except in the proper performance of your duties or as required by law, use, disclose or communicate to any person Confidential Information either during your employment or at any time after the Termination Date.

14.3 Nothing in this clause prevents you from making a protected disclosure within the meaning of section 43A of the Employment Rights Act 1996.

15. INTELLECTUAL PROPERTY AND INVENTIONS

15.1 All intellectual property rights in any work created or contributed to by you in the course of your employment ("**Works**"), including without limitation copy, designs, software, campaign concepts, data analyses and reports, vest automatically in the Company on creation.

15.2 To the extent that any such rights do not vest automatically, you assign them to the Company with full title guarantee, including by way of present assignment of future rights.

15.3 You waive irrevocably any moral rights in the Works in favour of the Company and its successors and assigns.

16. DATA PROTECTION

16.1 The Company collects and processes personal data about you in accordance with its Employee Privacy Notice, a copy of which has been provided to you and is available from the HR portal.

16.2 You agree to comply with the Company's Data Protection Policy and Information Security Policy at all times during your employment.

17. OUTSIDE INTERESTS

17.1 You may not, without the prior written consent of the Chief Executive Officer, undertake any other paid or unpaid work, consultancy, directorship or business activity which competes or could reasonably be expected to compete with the business of the Company or interfere with the proper performance of your duties.

18. POST-TERMINATION RESTRICTIONS

18.1 You agree that, in order to protect the Company's legitimate business interests, you shall not, without the prior written consent of the Company, during the Restricted Period:

- a. **Non-solicitation of Clients:** directly or indirectly solicit, induce or entice away from the Company any Client with whom you had material dealings during the twelve (12) months immediately preceding the Termination Date;
- b. **Non-dealing:** deal with, supply services to, or otherwise contract with any such Client in any business which competes with the Company;
- c. **Non-solicitation of employees:** directly or indirectly solicit, induce or entice away from the Company any senior employee with whom you had material dealings in the twelve (12) months preceding the Termination Date;
- d. **Non-compete:** for a period of three (3) months following the Termination Date, be engaged, concerned or interested (whether as employee, consultant or otherwise) in any business which is in direct competition with the Company in the United Kingdom in the field of paid performance marketing.

18.2 Each restriction in clause 18.1 is a separate and severable undertaking. You acknowledge that each is reasonable in scope, duration and geographical extent and is necessary for the protection of the Company's legitimate business interests.

19. GARDEN LEAVE

19.1 Following notice of termination given by either party, the Company may at its discretion require you to remain away from work for all or part of the notice period ("**Garden Leave**").

19.2 During Garden Leave: (a) you shall continue to receive Basic Salary and contractual benefits; (b) you shall remain bound by your duties under this Agreement, including the duty of fidelity and confidentiality; (c) the Company may require you not to attend its premises, not to contact Clients, suppliers or colleagues, and to return any Company property; and (d) accrued holiday must, so far as practicable, be taken during Garden Leave.

19.3 The Company may, in the alternative, terminate this Agreement with immediate effect and make a payment in lieu of notice equal to your Basic Salary for the unexpired portion of the notice period.

20. DEDUCTIONS AND SET-OFF

20.1 Without prejudice to clauses 11.5 and 19, you agree that the Company may, at any time during your employment and on its termination, deduct from any sums due to you (including, without limitation, salary, holiday pay, commission and pay in lieu of notice) any amount owing by you to the Company by way of: (a) overpayments of salary or expenses; (b) costs of training repayable under the Training Agreement (if any); (c) the value of Company property not returned; (d) the value of holiday taken in excess of accrued entitlement.

20.2 A list of currently authorised deductions is set out at Schedule 3. You consent to such deductions as required by section 13 of the Employment Rights Act 1996.

21. NOTICE AND TERMINATION

21.1 Subject to clause 4.3 (probationary period) and clause 22 (summary dismissal), either party may terminate this Agreement by giving the other not less than four (4) weeks' written notice.

21.2 The Company may, in its absolute discretion, terminate this Agreement with immediate effect at any time by making a payment in lieu of notice equal to your Basic Salary for the unexpired portion of the notice period. For the avoidance of doubt, any payment in lieu does not include commission, bonus, holiday pay or pension contributions in respect of the period for which payment is made.

22. SUMMARY DISMISSAL

22.1 The Company may terminate your employment without notice or pay in lieu of notice in cases of gross misconduct, including (without limitation): theft, fraud or other dishonesty; serious breach of confidentiality; harassment, discrimination or violence; serious breach of the Company's policies; or material misrepresentation in connection with your engagement.

23. EFFECTS OF TERMINATION

23.1 On the Termination Date, or earlier if requested, you shall: (a) return all Company property in your possession (including laptop, phone, security passes, documents and copies of documents in any form); (b) delete all Company information from any personal device; (c) provide passwords and access details for any Company account; and (d) cooperate with any reasonable handover arrangements.

23.2 Sums properly payable to you following termination shall be paid through the next available payroll run following the Termination Date.

24. GRIEVANCE AND DISCIPLINARY

24.1 The Company's grievance and disciplinary procedures are set out in the Employee Handbook. Those procedures do not form part of your contract of employment.

24.2 If you have any grievance, you should raise it in the first instance with your line manager and, failing satisfactory resolution, in writing with the HR Operations Manager.

25. NOTICES AND SERVICE

25.1 Any notice given under this Agreement shall be in writing and shall be deemed served: (a) if delivered by hand, at the time of delivery; (b) if sent by first-class post, two (2) business days after posting; or (c) if sent by email, on the day of transmission, provided no delivery failure notice is received.

26. VARIATION AND ENTIRE AGREEMENT

26.1 This Agreement, together with its Schedules, constitutes the entire agreement between the parties and supersedes any prior offer letter, agreement or arrangement (whether oral or written) relating to its subject matter.

26.2 The Company reserves the right to make reasonable changes to your terms and conditions from time to time. Changes will be notified to you in writing within one (1) month of the change.

27. THIRD PARTY RIGHTS

27.1 A person who is not a party to this Agreement shall have no rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any of its terms, save that each Affiliate may enforce the terms of clauses 14, 15, 16 and 18 in its own right.

28. GOVERNING LAW AND JURISDICTION

28.1 This Agreement is governed by, and shall be construed in accordance with, the laws of England and Wales.

28.2 The parties submit to the exclusive jurisdiction of the courts of England and Wales and to the jurisdiction of the Employment Tribunals.

SIGNED for and on behalf of the Company

SIGNED by the Employee

I Goodwyn

R Patel

Iris Goodwyn
Chief Executive Officer, Greycliff Digital Ltd
Dated: 28 June 2024

Ryan Daniel Patel
Senior Account Executive
Dated: 28 June 2024

Acknowledgement: By signing above I confirm that I have read and understood this Agreement and its Schedules, that I accept and agree to be bound by them, and that I have had the opportunity to take independent advice.

SCHEDULE 1

JOB DESCRIPTION

Senior Account Executive, Performance Marketing

Role purpose

To plan, deliver and optimise paid media campaigns (Paid Search, Paid Social, Programmatic Display and Affiliates) for a portfolio of mid-market and enterprise clients, and to act as the primary day-to-day point of contact for those clients on commercial and operational matters.

Key responsibilities

- a. Build and maintain trusted relationships with client stakeholders, typically at Marketing Manager to Head of Marketing level;
- b. Own quarterly performance reviews, attribution narratives and campaign roadmaps;
- c. Forecast monthly media spend across channels and report variances to the Head of Performance Marketing;
- d. Brief, oversee and quality-assure the work of one (1) Account Executive direct report;
- e. Identify organic growth opportunities within the client portfolio and partner with the New Business team on relevant pitches;
- f. Contribute to internal knowledge sharing, training and the Company's thought-leadership output.

Indicative KPIs

- a. Client net retention (year-on-year revenue) of 95% or higher across the assigned portfolio;
- b. Client satisfaction score (NPS) of +40 or higher;
- c. Quarterly forecasting accuracy within +/- 8%;
- d. Compliance with the Company's campaign QA framework on 100% of live deployments.

SCHEDULE 2

COMMISSION SCHEME RULES (2024/25)

Client-facing performance marketing roles

1. Eligibility

Open to all client-facing employees in the Performance Marketing team holding the role of Senior Account Executive or above, who have successfully completed probation.

2. Commission rates

Trigger event	Qualifying revenue	Commission rate
Existing client retainer uplift	Incremental annualised fee secured during the quarter	2.5%
New business won (organic, from existing client base)	First 12 months' fee value	5.0%
Cold new business won (where the employee is named on the pitch team)	First 12 months' fee value	7.5%
Awards-driven referrals (where directly attributable)	First 6 months' fee value	3.0%

3. Calculation and payment

Commission is calculated quarterly in arrears by Finance, reviewed and signed off by the Head of Performance Marketing and the Chief Financial Officer, and paid in the calendar month following the end of the relevant quarter alongside basic salary. Calculations are based on amounts invoiced (and not subsequently credited) during the quarter.

4. Discretion

Notwithstanding any other provision of these rules, all commission payments are at the absolute discretion of the Company, and are payable only on active employees at the date of payment. The Company will exercise its discretion rationally and in good faith, taking into account in particular any amounts that have been confirmed in writing as payable by the Head of Performance Marketing or another duly authorised member of management.

5. Clawback

If, within six (6) months of payment, the underlying client cancels, materially reduces scope or invokes a payment dispute, the Company reserves the right to claw back a pro-rated portion of the commission paid, in accordance with clause 20 of the Contract of Employment.

6. Adjustment of the scheme

The Company may review and adjust the Commission Scheme annually. Any changes will be communicated in writing and will not affect commission already earned and confirmed as payable in writing prior to the date of the change.

SCHEDULE 3

AUTHORISED DEDUCTIONS AND SET-OFF

For the purposes of section 13, Employment Rights Act 1996

The Company is authorised to deduct from any sums owing to you (including salary, holiday pay, commission and any payment in lieu of notice) amounts in respect of the following:

- a. any overpayment of salary or expenses;
- b. any sums advanced by the Company to you which remain outstanding;
- c. the cost of any Company property not returned in good working condition on the Termination Date;
- d. the value of any holiday taken in excess of accrued entitlement, calculated in accordance with clause 11;
- e. any contractual training fees repayable under the Company's standard Training Repayment Agreement;
- f. any clawback amount payable under Schedule 2, paragraph 5;
- g. any amount which you have agreed in writing may be deducted.

Greycliff Digital Ltd · Registered office: Greycliff House, 22 New Cavendish Street, London W1G 8UN · Company No. 11440293 · VAT GB 312 4458 21

This document is synthetic and was generated for the Lawhive AI Hackathon 2026. All names, addresses, references and amounts are fictional.